SUPERIOR COURT OF CALIFORNIA
COUNTY OF ALAMEDA

26CV191136: NEWANFORBI vs CALIFORNIA HIGHWAY PATROL, et al.
08/28/2026 Hearing on Demurrer Demurrer to Petition for Writ of Mandate; filed by California Highway Patrol (Respondent) CRS# 811363998599 in Department 25

Tentative Ruling - 08/27/2026 Jenna Whitman

The Court ORDERS THE PARTIES TO APPEAR as to California Highway Patrol's ("CHP") Demurrer to petitioner Brendan Ngehsi Newanforbi's ("Petitioner") Writ of Mandate, which individual respondents Gerardo Serrato ("Serrato"), Gary Paul ("Paul"), Eric Dutra ("Dutra") (CHP, Serrato, Paul and Dutra are collectively "Respondents").

PLEASE NOTE: In light of the late issuance of this tentative ruling, and other matters which have been contested on the Court's 9:00 a.m. calendar, the parties shall appear at 10:30 a.m. This will give the parties additional time to consider and prepare to address this tentative ruling, and any other issues relevant to the demurrer and joinders therein.

PROCEDURAL BACKGROUND AND ALLEGATIONS. The Petition challenges the CHP's refusal to execute a Federal Immigration Form I-918 Supp. B U Nonimmigrant Status Certification (the "I-918 Form" or "I-918"). Under federal immigration law, a noncitizen immigrant may apply for an immigration status benefit if: (I) the alien has suffered physical or mental abuse as result of being victim of criminal activity; (II) alien possesses information concerning criminal activity; (III) alien is being helpful in investigating criminal activity; and (IV) violated laws of the united states or occurred in the united states. (8 U.S.C. § 1101(a)(15)(U)(i).)

The list of enumerated crimes for which this law applies is as follows: "the criminal activity referred to in this clause is that involving one or more of the following or any similar activity in violation of Federal, State, or local criminal law: rape; torture; trafficking; incest; domestic violence; sexual assault; abusive sexual contact; prostitution; sexual exploitation; stalking; female genital mutilation; being held hostage; peonage; involuntary servitude; slave trade; kidnapping; abduction; unlawful criminal restraint; false imprisonment; blackmail; extortion; manslaughter; murder; felonious assault; witness tampering; obstruction of justice; perjury; fraud in foreign labor contracting (as defined in section 1351 of title 18); or attempt, conspiracy, or solicitation to commit any of the above mentioned crimes." (8 U.S.C. § 1101, subd. (a)(15)(U)(iii).)

Penal Code, section 679.10(g)(1) provides in relevant part:

"'"Upon the request of the victim, ..., a certifying official from a certifying entity shall certify victim helpfulness on the Form I-918 Supplement B certification, when the victim was a victim of a qualifying criminal activity and has been helpful, is being helpful, or is likely to be helpful to the detection or investigation or prosecution of that qualifying criminal activity. The certifying entity shall forward completed Form I-918 Supplemental B certification to the victim, ..."

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Petitioner submitted a completed Form I-918 Supp. B to the CHP's Dublin Area offices on 4/9/2026, which respondent Officer Serrano, as the alleged Captain and Commander of CHP's Dublin Area station, denied on 4/20/2026 on the basis that the crimes Petitioner alleged "does not meet the standards" § 1101(a)(15)(U)(iii) quoted above. Specifically, the rejection letter states:

> "A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Sectioh 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC.

(Petition, Ex. 1.)

Petitioner's Petition seeks a writ relief based upon (1) Respondents' alleged failure to perform a mandatory duty under Penal Code section 679.10(b); (2) Respondents Failure to Comply with the Reason-Giving Requirement for the Denial (§ 679.10(i)(2)); and (3) Respondents' failure to apply rebuttable presumption of helpfulness (§ 679.10(h)). Petitioner also seeks related Declaratory Relief.

Respondent CHP has filed a demurrer, in which individual respondents also join.

APPICLABLE LEGAL STANDARD. "A demurrer tests the legal sufficiency of the factual allegations in a [pleading]." (Redfearn v. Trader Joe's Co. (2018) 20 Cal.App.5th 989, 996.) The Court must determine "whether the [pleading] alleges facts sufficient to state a cause of action [or other claim for relief] or discloses a complete defense." (Id.) The court assumes "the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (Id.) "As a general rule in testing a pleading against a demurrer the facts alleged in the pleading are deemed to be true, however improbable they may be," unless the "complaint contains allegations of fact inconsistent with attached documents, or allegations contrary to facts which are judicially noticed." (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604.) "The court does not, however, assume the truth of contentions, deductions or conclusions of law." (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) Courts "give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (Goncharov v. Uber Techs., Inc. (2018) 19 Cal.App.5th 1157, 1165.)

ANALYSIS OF DEMURRER. Respondents demur on several grounds, which are taken in turn.

Ministerial Duty to Certify Petitioner's I-918 Form. Petitioner alleges that he was the victim of the following crimes enumerated in § 1101(a)(15)(U)(iii) in connection with his alleged wrongful arrest for driving while intoxicated (DUI) shortly before 1:00 a.m. on the morning of

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Friday, 11/1/2024 by CHP officers not named as respondents to the Petition: False Imprisonment/Unlawful Criminal Restraint; Felonious Assault/Battery; Obstruction of Justice; and Perjury.

Respondent CHP argues (and the other Respondents join) that, as a matter of law, Petitioner cannot establish that he was the victim of any of these crimes and thus cannot prove that CHP had any obligation to certify his I-918 form.

Petitioner alleges that he is professionally employed as a truck driver. However, he was not driving a truck but rather a rented Tesla Model Y at the time of his 11/1/2024 arrest. (Petition Exh. 5 at p. 2 at 00:55:25 and Exh. 6.) Petitioner was apparently returning from Oakland to his home in Stockton, when he pulled over onto the shoulder of Interstate-580 (I-580) and took a nap in the Tesla at a little after midnight because he was tired. (Id. at Exh. 5 at p.3 at 00:57:30.) Two CHP officers observed the Tesla and pulled over, noting that they had not seen it on an earlier pass of the location. (Exh. 5 at p. 2 at 00:56:07.) The officers asked if he had been drinking, which Petitioner denied. (Exh. 5 at p. 3 at 00:58:30.) The officers requested that Petitioner step out of the vehicle and asked him for his driver's license. One of the officers found an empty can of Mike's Hard Lemonade, an alcoholic beverage, in the Tesla. Petitioner denied that he consumed the drink while he had been parked there or previously. (Id. at Exh. 5 at pp. 4-6 and Petition ¶ 47.) The officers then had Petitioner perform field sobriety tests. It appears that Petitioner resisted one of the tests that involved lifting one of his legs off the ground and holding the position for several seconds. (Id. at pp. 8-9.) One of the officers then requested that Petitioner take a preliminary alcohol screening test but advised that Petitioner was not required to consent to the test. Plaintiff asked what the result would be if he refused to undergo the test and the officer responded that it would be the officer's discretion whether to arrest Petitioner for DUI. (Id. at p. 10.) Plaintiff refused to take the test, and the officer arrested him. (Ibid.) Petitioner alleges that he was handcuffed, taken to a CHP facility, forced to take a blood test to determine if he had alcohol in his system, and was held in custody until 11/5/2024 at which time he was released without charges. He was given a document stating that he had been detained and not arrested. (Petition ¶¶ 38-42.)

However other allegations, including Exhibit 5, which Petitioner represents to be an accurate transcript with the arresting CHP officers in the early morning hours of 11/1/2024, do tend to support Respondents' argument that CHP officers did have probable cause to arrest Petitioner. Petitioner was parked on the shoulder of an interstate highway within the City of Livermore sleeping in his vehicle at approximately 1:00 a.m. with an open alcohol container in this car, and he refused to submit to a preliminary alcohol test when investigating CHP officers requested he do so. (People v. Thompson (2006) 38 Cal.4th 811, 818 ["Probable cause exists when the facts known to the arresting officer would persuade someone of 'reasonable caution' that the person arrested committed a crime]; see also Veh. Code, §§ 23152(a), 23222(a), 23612(a).)

This conflict presents a classic factual dispute not amenable to resolution on demurrer. At this stage, the Court must credit Plaintiff's allegations that neither he nor his vehicle smelled of

alcohol, that he showed no signs of impairment in talking with the officers or in performing the physical field sobriety tests he agreed to perform, and that the arresting officers lied about it in their police report (Exh. 6 to Petition). Under those circumstances, at the hearing on the merits, a finder of fact could reasonably find probable cause for arrest was lacking. (See People v. Wolterman (1992) 11 Cal.App.4th Supp. 15, 18; Espinoza v. Shiomoto (2017) 10 Cal.App.5th 85, 101-102.) Thus, Respondents' demurrer to the first cause of action is OVERRULED.

Reason Giving Cause of Action. Respondents also challenge the sufficiency of Petitioner's pleading as to the second, "reason giving" cause of action. The governing section of the Penal Code provides: "If a certifying entity does not certify a Form I- 918 Supplement B certification, they shall provide a written explanation for the denial of the Form I-918 Supplement B certification. The written denial shall include specific details of any reasonable requests for cooperation and a detailed description of how the victim refused to cooperate." (Pen. Code, § 679.10, subd. (i)(2).) Respondents are correct that the only specificity the statute requires concerns a requestor's failure to cooeprate with reasonable requests for cooperation. Here, the denial was not based upon Petitioner's noncooperation, which was apparently voluntarily provided. It is was based upon the failure to "meet the standard of qualifying criminal activity." (CHP Denial Letter, Pet. Ex. 1.)

As outlined above, the denial letter did provide an explanation. The underlying incident did not fall within any of the statutorily identified crimes which would qualify the application for certification. There is no basis for requiring more detail here, because the statute only requires specificity as to noncooperation. Under the canon of statutory interpretation *expresio unius est exclusion alterius* – the expression of one thing is the exclusion of another; thus, we read the statute to say that such detail is required only for noncooperation, but not to other cited reasons for rejection.

Even if such detail were required, it is immaterial here, where noncooperation was not the basis for denial. It would appear that there are no circumstances under which Petitioner could amend to remedy this defect. Thus, the Demurrer to the Second Cause of Action for Failure to Comply with Reason Giving Requirement is SUSTAINED WITHOUT LEAVE TO AMEND.

Rebuttable Presumption of Helpfulness. Accepting Petitioner's allegations that he "cooperated with every investigative channel available to him and has never refused or failed to provide any information or assistance reasonably requested" (Pet. ¶ 4), the allegation appears to be immaterial, where the Petition admits that refusal to cooperate was not a reason for denial. Petitioner's request was denied for a wholly independent reason (no proof of qualifying criminal activity) such that CHP did not need to consider whether Petitioner had cooperated. Thus, there was no opportunity to apply the presumption, and it is plainly not applicable. Thus, the Third Cause of Action has no merit as a matter of law. Petitioner cannot plead additional facts to remedy this defect, as the reason for rejection is memorialized in the CHP letter. (Petition Ex. 1.) Thus, the demurrer is SUSTAINED WTIHOUT LEAVE TO AMEND as to the third cause of action.

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Declaratory Relief. While Petitioner's claim for declaratory relief may ultimately become duplicative of the surviving cause of action, the Court cannot make that determination at this juncture. A Petitioner may plead cumulative and even inconsistent theories of recover in the alternative. There is no basis for requiring him to elect remedies at the pleadings stage. Thus, the demurrer to the fourth cause of action for declaratory relief is OVERRULED.

ORDER. The CHP's Demurrer is SUSTAINED as to the second and third causes of action, without leave to amend, and OVERRULED as to the first and fourth causes of action, as the Petition will turn, at least in part, on contested issues of fact.

The parties may appear in person, in Dept. 25, or remotely, via Zoom, as follows:

Department 25 is inviting you to a scheduled meeting. Please sign onto Zoomgov.com using credentials below.

Meeting ID: 161 8066 1142
Passcode: 5805